

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 08/03/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

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Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C24-01454
CASE NAME: MICHAEL CARLSON VS. TOPANGA DRIVE L.P.
***HEARING ON MOTION IN RE: FOR ATTORNEY'S FEES**
FILED BY: CARLSON, MICHAEL
TENTATIVE RULING:

Plaintiffs Michael Carlson and Sylvia Manzo ("Plaintiffs") filed a Motion for Attorney's Fees on March 19, 2026 (the "Motion for Attorney's Fees"). The Motion for Attorney's Fees was set for hearing on August 3, 2026 in Department 34.

The motion is opposed.

Background

Defendant Clovis Management, Inc. ("Defendant") filed an ex parte application on March 11, 2026 seeking entry of a judgment for possession against Plaintiffs pursuant to a settlement agreement and stipulation for entry of judgment. See Order entered March 13, 2026 (the "March 13, 2026 Order").

That application was denied. March 13, 2026 Order, ¶6. Plaintiffs now seek an award of attorneys' fees incurred to oppose the application.

The Motion for Attorney's Fees is supported by the Declaration of Andrew Wolff filed March 19, 2026 (the "Wolff Decl.") and the Declaration of Duncan McGee Nefcy filed March 19, 2026 (the "Nefcy Decl.") (collectively, the "Supporting Declarations").

The Supporting Declarations include summaries of the legal services rendered and expenses incurred in the litigation of the matter. See Wolff Decl., ¶7-11 (5.375 hours at \$1,000 for \$5,375 in fees) and Nefcy Decl., ¶10 (13.625 hours at \$500 for \$6,812.50 in fees). The fees sought total \$12,187.50, representing a total of 19 hours. *Id.* The Court notes that no billings statements were attached to the moving papers.

In addition, six additional hours were anticipated to be incurred in connection with further proceedings on the motion. No further supplemental declaration has been filed to date.

No costs are sought by the motion.

Opposition papers were filed on July 21, 2026 by Defendant.

Requests for Judicial Notice

On July 21, 2026, Defendant filed a request for judicial notice in connection with the Opposition (the "Defendant's RJN"). The Defendant's RJN requests that the Court take judicial notice of a Declaration of Linda Dunn dated March 11, 2026 (under Case No. 24CV104930) (the "March 11, 2026 Dunn Declaration").

It appears that Defendant makes such request in connection with arguments in its Opposition brief about the timing of communications about the payment at issue. See Opposition, p. 3., ln. 17 *et seq.* ("Plaintiffs' counsel inquired about the initial payment on February 23 at 11:27am,...").

Defendant fails to properly cite to the declaration to which the Opposition refers. The citation in the Opposition fails to reference the declaration being attached to the JRN. Nor does the citation even provide the date of filing of the referenced declaration. See *id.* at p. 3, lns. 18-19 ["(See Dec. of Linda Dunn)."]. This is particularly confusing because another declaration was filed by Ms. Dunn with the Opposition papers.

Nonetheless, assuming the reference is to the proffered declaration attached to the JRN—as it appears to be—the request is improper. The Court cannot take judicial notice of the declaration for purpose of considering factual averments about communications regarding the payment or similar factual matters. The Court may, in its discretion, take judicial notice of court records. Evid. Code § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of documents in a court file, they may not take judicial notice of the truth of statements in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2026 Edition) § 7:12.

Accordingly, Defendant's RJN seeking judicial notice of the March 11, 2026 Dunn Declaration is **DENIED**.

Plaintiffs also filed a request for judicial notice in connection with the moving papers (the "Plaintiffs' RJN"). This request seeks judicial notice of the March 13, 2026 Order and the underlying ex parte application. Plaintiffs' RJN is **DENIED**. The Court is familiar with its docket in this case and need not resort to judicial notice to be aware of prior orders made or the history of pleadings filed in the case.

Analysis

The Plaintiffs seek an award of attorneys' fees pursuant to a governing settlement agreement reached between the parties. See Wolff Decl., ¶2 and **Exhibit A** thereto (the "Settlement Agreement").

Paragraph 4 of the Settlement Agreement contains a prevailing party attorneys' fees provision:

4. Attorneys' Fees

a) Each party hereto shall bear its own attorneys' fees and costs arising from the actions of its own counsel in connection with the subject matter described herein and incurred prior to the date of execution of the Settlement Agreement.

b) In any action of any kind relating to the enforcement of this Settlement Agreement, the prevailing party shall be entitled to collect reasonable attorneys' fees and costs from the non-prevailing party in addition to any other recovery to which the prevailing party is entitled.

See Settlement Agreement, ¶4, Wolff Decl., **Exhibit A**. Among other things, the provision applies to "any action of any kind relating to the enforcement" of the Settlement Agreement. *Id.* at ¶4(b).

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

The Court has reviewed the stated hours and the nature of the legal work described in the Supporting Declarations. The Court has given due consideration to its own familiarity with the nature and extent of the prior ex parte proceedings as well as all other information provided by all parties as to the nature and necessity of the claimed hours for legal services. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court finds the 19.0 hours billed and the total claimed fees of \$12,187.50 to be excessive.

In particular, the Court does not find the following items were reasonable and concludes that the items should be reduced, in light of the nature of the work described and in view of the totality of the fees claimed:

\$500.00 Timekeeper, Duncan McGee Nefcy (see Nefcy Decl.):

- 1.25 hours reduced to .5 hours ["one and one quarter (1.25) of an hour reviewing Defendant's ex parte application"] for reduction of 0.75 hours

- 4.0 hours reduced to 0.5 hours [“four (4) hours conducting legal research on entitlement to attorney’s fees pursuant to contract and the reasonableness of hourly rates under the Laffey Matrix”] for reduction of 3.5 hours

- 1.0 hour reduced to 0.3 hours [“one (1) hour drafting the request for judicial notice”] for reduction of 0.7 hours

Those reductions total 4.95 hours, leaving a balance of 8.675 hours (\$4,337.50 at the \$500.00 timekeeper rate).

\$1,000.00 Timekeeper, Andrew Wolff (see Wolff Decl.):

The Court finds that the described 5.375 hours described to be reasonable in scope and for the nature of the work described. However, the Court does not find the \$1,000 an hour reasonable and justified for the work described, especially as relates to essentially supervisory work on a routine motion for fees. The Court will reduce the hourly rate for these hours to \$500.00 per hour. 5.375 hours at \$500.00 per hour equals \$2,687.50. In making this reduction, the Court is also mindful of the outcome achieved which was successful on Plaintiffs’ part, but also partially limited in that the Court ordered further meet and confer to resolve the issue to which both sides contributed causing in the first place.

Total Awarded

The total amount awarded for attorneys’ fees and costs is **\$7,025.00** (\$4,337.50 plus \$2,687.50). The Court finds those hours and fees to be reasonable and necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Attorney’s Fees is GRANTED.
2. The Plaintiffs are awarded and shall recover from Defendant attorneys’ fees in the sum of **\$7,025.00**.
3. The moving party shall prepare and submit the order after hearing.

2. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
HEARING ON SUMMARY MOTION BY CHRISTOPHER ROBERTS AND COURTLY STEVENS
FILED BY:
TENTATIVE RULING:

On its own motion, the Court continues this hearing to **August 17, 2026** at **9:00 a.m.** in **Department 34**.

3. 9:00 AM CASE NUMBER: C24-02212
CASE NAME: TROY ANDERSON VS. MARK PETERSON
***HEARING ON MOTION IN RE: REQUEST FOR ORDER FOR LEAVE TO REFILE CIVIL COMPLAINT**
FILED BY: ANDERSON, TROY
TENTATIVE RULING:

Before the Court is Plaintiff Troy Anderson's Motion for Order for Leave to Refile Civil Complaint.

Procedural Background

Plaintiff filed his Complaint on August 21, 2024. Defendants filed a Demurrer to Complaint on November 6, 2024. On February 24, 2025, the Court issued a tentative ruling sustaining the demurrer in full and granting Plaintiff leave to amend. The tentative ruling was not contested, so it became the Order of the Court at 4:00 p.m. on February 24, 2025. (Local Rule 3.43 (2).)

On March 20, 2025, Defendants filed and served a Notice of Entry of Order confirming the Court's ruling. The Order made clear that "Plaintiff's amended complaint, if any, is due on or before April 1, 2025."

On June 3, 2025, Defendants appeared ex parte seeking dismissal of this matter due to Plaintiff's failure to timely file his amended complaint. The Court granted the request and executed the Order "dismissing the entire action with prejudice" on June 3, 2025. Notice of entry of the Order was filed and served on June 4.

Over nine months later, on March 25, 2026, Plaintiff filed the instant motion seeking leave to 'refile' his civil complaint.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The 'mandatory' provision that relates to times when an attorney admits fault in causing the default. That provision is not at issue in this matter.

Plaintiff also makes reference, generally, to his “due process” rights to have his case heard on its merits.

Analysis

Plaintiff argues that his failure to timely file his amended complaint was due to ‘mistake, inadvertence, surprise, or excusable neglect,’ and he should be relieved from the dismissal under Code of Civil Procedure section 473(b).

1. Timeliness

A motion to set aside a dismissal “shall be made within a reasonable time, *in no case exceeding six months*, after the judgment, dismissal, order, or proceeding was taken.” (Cal. Code Civ. Proc. § 473 (b) emphasis added.) The “six-month time limit for granting statutory relief [under 473 (b)] is jurisdictional and the court may not consider a motion for relief made after that period has elapsed.” (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 citing *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; see also, *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147.)

The Notice of Entry of Order dismissing “the entire action with prejudice” was entered and served on June 4, 2025. Accordingly, any motion to set aside that order was required to be filed no later than December 4, 2025.

Plaintiff filed the instant motion on March 25, 2026 – over three months too late. As noted above, the six-month deadline is jurisdictional. The “court may not consider a motion for relief made after that period has elapsed.” (*Manson*, supra, 176 Cal.App.4th at 42.) Accordingly, Plaintiff’s motion must be denied.

2. Merits

Even if not barred by the failure to comply with the jurisdictional deadline or if considered based on his “due process” arguments, the Court would deny the motion. Plaintiff had a full and fair opportunity to be heard on the demurrer proceedings. He was served with the demurrer papers. See Proof of Service filed November 6, 2024. He filed opposition papers on February 3, 2025. As noted in the initial tentative ruling, the Court considered the arguments raised in opposition by Plaintiff.

Plaintiff has not shown that the dismissal ultimately entered was due to any mistake, inadvertence, surprise, or excusable neglect on his part. Nor has he shown denial of any fundamental due process rights that would be a basis for setting aside the prior dismissal.

Conclusion

Plaintiff’s Motion for Order for Leave to Refile Civil Complaint is **DENIED**.

4. 9:00 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

***HEARING ON MOTION IN RE: EXTENSION OF TIME TO OBTAIN A DEFAULT JUDGMENT**

FILED BY: NFP CORPORATE SERVICES (CA), INC.

TENTATIVE RULING:

Defendants and cross-complainants NFP Corporate Services (CA), Inc. and NFP CA Insurance Services, Inc. ("NFP Defendants") filed a Motion for an Extension of Time to Obtain a Default Judgment against Cross-Defendants on March 11, 2026 (the "Motion for Extension of Time"). The Motion for Extension of Time was set for hearing on August 3, 2026.

Background

The NFP Defendants filed a Cross-Complaint against Corbin Blume and Jaguar Energy, LLC (the "Cross-Defendants") on January 8, 2026. See Cross-Complaint filed January 8, 2026; see Declaration of Brittany Rogers filed March 11, 2026 ("Rogers Decl."), ¶4 and **Exhibit 2** thereto. The Cross-Complaint was served on the Cross-Defendants. *Id.* at ¶¶5-7.

Defaults were entered against the Cross-Defendants on February 17, 2026. *Id.* at ¶8.

Analysis

The NFP Defendants seek an order extending the deadline to seek and obtain entry of a default judgment against the defaulted Cross-Defendants, pursuant to Rule 3.110 of the California Rules of Court (CRC). See CRC 3.110(h) ("When a default is entered, the party who requested the entry of default must obtain a default judgment against the defaulting party within 45 days after the default was entered, unless the court has granted an extension of time.").

The motion is unopposed.

The Court notes that there is now pending a separate Cross-Complaint against the same Cross-Defendants by defendant and cross-complainant Theodore Zouzounis.

Disposition

The Court finds and rules as follows:

1. The Motion for Extension of Time is GRANTED.
2. The Court shall enter the proposed order lodged with the moving papers.

5. 9:00 AM CASE NUMBER: C24-02589

CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER

***HEARING ON MOTION IN RE: MONETARY SANCTIONS**

FILED BY:

TENTATIVE RULING:

Plaintiff Michael Hoffman ("Plaintiff") filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants.

Collectively, these motions are referred to herein as the “Motions to Compel Further Responses.” The Motions to Compel Further Responses were set for hearing on various dates and consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Motions to Compel Further Responses were heard on March 23, 2026 and May 18, 2026. See Order entered April 1, 2026 and Order entered June 4, 2026. The Court ruled on the discovery matters at issue. *Id.*

The Court found that the unsuccessful moving party engaged in conduct that constituted misuse of the discovery process and that warranted the imposition of monetary sanctions (the “Monetary Sanctions”). See Order entered June 4, 2026.

A briefing schedule was set for submission of further papers regarding the amount of the Monetary Sanctions and a further hearing was set on August 3, 2026.

Analysis

Defendants’ supplemental declaration regarding Monetary Sanctions was filed on June 17, 2026. See Declaration of Ondrej Likar filed June 17, 2026 (“Likar Decl.”). The declaration summarizes scope of the work performed in connection with litigating the Motions to Compel Further Responses and the billing rates for the various timekeepers doing that work. *Id.* at ¶3 *et seq.* Billing records were proffered as well. *Id.* at Exhibits B through E.

In total, defendants’ supplemental declaration reflects \$31,710.00 in total fees incurred in litigating the Motions to Compel Further Responses. Those sums are less than the actual fees incurred, as certain further expenses such as 14.9 hours of paralegal time were left out in a voluntary effort to mitigate the claimed expenses, consistent with the Court’s expressed inclination to mitigate the imposed Monetary Sanctions in light of the totality of the circumstances. See *Id.* at ¶¶7-18 and 20-24. Defendants have indicated that they are only seeking \$27,000.00 (\$6,000.00, \$10,000.00, \$8,000.00 and \$3,000.00 for the various categories of work outlined in the Likar Decl.).

Plaintiff filed an Opposition on July 17, 2026, along with an opposition declaration. See Declaration of Kevin Tredway filed July 17, 2026 (“Tredway Decl.”).

The Court has considered the totality of the circumstances as relates to the concerns raised by Plaintiff, among others, regarding the scope and nature of the billings and the results achieved weighed against the scope of the matters resolved through prior meet and confer efforts.

The Court concludes that Monetary Sanctions in the amount of \$12,500 are just and reasonable. In fixing said amount, the Court has considered all evidence in the record before the Court, including the further declarations submitted. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute, including, but not limited to, the substantial meet and confer efforts that reduced the scope of the discovery items in dispute and ultimately ruled upon by the Court.

The Court does not conclude that resolution of the setting of the amount of the Monetary Sanctions imposed by prior order is necessarily stayed by the now pending Anti-SLAPP Motion. The Court declines to exercise any discretion that it may have to do so.

Disposition

The Court further finds and orders as follows:

1. The Monetary Sanctions shall be paid by Plaintiff to defendants in the sum of **\$12,500.00** within

sixty (60) calendar days of notice of entry of this order.

2. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C25-01386
CASE NAME: LAUREN GLICKMAN VS. DOES 1 TO 30, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE RE: ATHENA GLICKMAN**
FILED BY: GLICKMAN, LAUREN
TENTATIVE RULING:

Petitioner Lily Shirvanee, the duly appointed guardian ad litem herein, for the minor claimant Athena Glickman, filed a Petition for Approval of Compromise of Claim on or about April 24, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on August 3, 2025.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

7. 9:00 AM CASE NUMBER: C25-01837
CASE NAME: VINCIANE BUZENET VS. HI-HVAC, INC.
***HEARING ON MOTION FOR DISCOVERY**
FILED BY:
TENTATIVE RULING:

Plaintiff Vinciane Buzenet ("Plaintiff") filed a motion to compel further responses to special interrogatories and requests for production on April 13, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks further responses to Special Interrogatories, Set Two, and Requests for Production, Set Two (collectively, the "Discovery Requests"). The Motion to Compel was set for hearing on August 3, 2026. The motion is opposed.

Background

A case management conference ("CMC") was conducted April 30, 2026. In its CMC Order, the Court directed the parties to meet and confer regarding ongoing discovery disputes and to file a "Joint Separate Statement" addressing any unresolved disputes. See CMC Order filed May 6, 2026, ¶1.

Both parties describe meet and confer efforts on or around June 6, 2026. See Opposition, p. 3; see also Plaintiff's Reply ISO Motion to Compel filed July 20, 2026 (the "Reply"), p. 4. Defendant Hi-HVAC, INC. ("Defendant") provided supplemental responses on June 29, 2026. Reply, p. 2; Opposition, p. 2.

The parties filed a Joint Separate Statement on July 2, 2026, that details the requests which remained in dispute. Plaintiff filed the Reply on July 20, 2026, in which she acknowledges that additional disputes were resolved since filing the Joint Separate Statement. See Reply, p. 2.

The Discovery Requests which remain at issue in the Motion to Compel are the following:

1. **Special Interrogatory No. 11** (the “SROG”);
2. **Requests for Production of Documents Nos. 1, 5, 6, 10 and 11** (the “RFPs”).

Defendant filed an opposition on July 20, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Special Interrogatory No. 11

The party propounding interrogatories may move for an order compelling a further response if it deems the responses are evasive or incomplete. Code Civ. Proc. § 2030.300(a).

First, this response has been amended since the filing of the Joint Separate Statement. See **Exhibit A** of the Declaration of Mitchell R. Vanlandingham as part of Opposition (“Vanlandingham Decl.”), p. 7. In the Reply, Plaintiff maintains that the amended response is deficient for substantially the same reasons as the original. See Reply, p. 4 *et seq.*; see also Joint Separate Statement, p. 4.

The SROG asks Defendant to “describe all *steps* taken by Defendant to determine whether the lithium-ion battery had previously overheated or malfunctioned.” Joint Separate Statement, p. 4 (emphasis added). The amended response states that Defendant is unable to identify the subject battery, however, has never experienced related malfunctions with lithium-ion batteries prior. See **Exhibit A** of the Vanlandingham Decl., p. 7. As Plaintiff points out in the Reply, this response reaches a conclusion, but the call of the question is the *steps* taken to reach that conclusion. Even if the subject battery cannot be identified, the steps taken to conclude that there have never been any related issues should be described. For example, what records were reviewed or which, if any, knowledgeable persons were spoken to in reaching that conclusion? As such, the Court finds this response to be incomplete. The Motion to Compel is **GRANTED** as to this SROG and a further response shall be made.

Request for Production of Documents Nos. 1, 5, 6, 10, and 11

A party may move for an order compelling further response to a request for production of documents where a statement of compliance with the demand is incomplete. Code Civ. Proc. § 2031.310(a). Code of Civil Procedure section 2031.220 provides “[a] statement that the party to whom a demand for inspection . . . has been directed will comply with the particular demand shall state that the production . . . will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.”

Here, Plaintiff's concern is with the statements of compliance provided by Defendant, not with the documents produced. See Reply, p. 2. The RFPs all have substantially similar responses. They state "Responding Party will produce all responsive, non-privileged documents in its possession, custody, and control." See Joint Separate Statement, p. 5 *et seq.* The response to RFP No. 1 includes a qualifying statement that the responding party cannot determine with certainty which records relate to the purchase of the subject battery. Joint Separate Statement, p. 5. Nonetheless, it goes on to state similar language to the other RFPs. *Id.* The parties further agree that the responses are verified. See Opposition, p. 4; Reply, p. 2. As such, the Court finds that all responses comply with the requirements provided by Code of Civil Procedure section 2031.210 *et seq.*

The Motion to Compel is **DENIED** as to RFPs Nos. 1, 5, 6, 10, and 11.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** as to Special Interrogatory No. 11. Defendant shall serve a **verified** further amended response to the subject SROG **within thirty (30) calendar days** of notice of entry of this order.
2. The Motion to Compel is **DENIED IN PART** as to Requests for Production Nos. 1, 5, 6, 10, and 11.
3. Any and all sanctions requests are DENIED. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. The Court shall prepare the order after hearing.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING IN RE: MOT. FOR RECONSIDERATION ON SANCTIONS
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed its Motion for Reconsideration of Monetary Sanctions on May 15, 2026 (the "Motion for Reconsideration"). The Motion for Reconsideration was initially set for hearing on July 20, 2026. Thereafter, the motion was continued to August 3, 2026. See Order entered June 10, 2026.

Background

Plaintiff contends that the Court should reconsider the monetary sanctions imposed on Plaintiff by the Court in connection with prior unsuccessful motions to compel brought by Plaintiff. See Order entered May 5, 2026 (\$3,065.00 in monetary sanctions imposed by order denying motion to compel further responses to Requests for Production of Documents (Set Three) heard May 4, 2026); see also Orders entered March 3, 2026 and May 15, 2026 (\$1,000.00 in monetary sanctions imposed by orders denying motion to compel further responses to form interrogatories and various requests for production of documents). These sanctions total \$4,065.00.

The motions were denied on procedural grounds due to Plaintiff's failure to timely file proper Separate Statements in support of the motions. In its later ruling, the Court also noted that "the moving party's meet and confer efforts were woefully inadequate." See Order entered May 5, 2026, Attachment A, p. 2.

An Opposition, including the Declaration of Kevin D. Siegel ("Siegel Decl.") was filed on July 21, 2026.

Analysis

Code of Civil Procedure section 1008 governs a motion for reconsideration. The statute provides "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." Code Civ. Proc. § 1008 (emphasis added). The different state of facts language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier. *Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.

Plaintiff also seeks relief under Code of Civil Procedure section 473(b). Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 ("*Rivercourt*"). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Plaintiff's motion recites that the sanctions were paid. However, he goes on to make certain observations about new information supposedly learned regarding the other party's discovery compliance.

As noted in the Opposition papers, Plaintiff persists in blatant violation of relevant procedural requirements. His twenty-five (25) page Memorandum of Points and Authorities violates Rule 3.1113* of the California Rules of Court (CRC). See CRC 3.1113(d) ("Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.").

Also, the effect of this motion is, essentially, to ask the Court to delve into detailed issues with discovery requests and responses without the benefit of a proper detailed Separate Statement, compounding the prior procedural errors. The Court declines to do so.

In any event, the “new” issues raised by Plaintiff do not go to the crux of the bases for the Court’s prior rulings underlying the monetary sanctions (or to the determination of the sanctions amounts themselves).

Plaintiff has also failed to show the existence of any mistake, inadvertence, surprise, or excusable neglect on the part of Plaintiff that would warrant the relief sought. Even if somehow tantamount to mistake, inadvertence, surprise, or excusable neglect on Plaintiff’s part, his belated receipt or review of the other party’s opposition papers did not result in the adverse rulings and monetary sanctions against him. Rather, his persistent failure to comply with procedural requirements did.

*The opposing party’s citation to “Rule 3.113” is erroneous.

Disposition

The Court finds and orders as follows:

1. The Motion for Reconsideration is DENIED.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-03449
CASE NAME: JOHN M.O. ROE VS. OFFICER LEWIS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Defendant County of Contra Costa (“Defendant”) brings this demurrer to the first amended complaint (“Complaint”) of plaintiff John M.O. Roe (“Plaintiff”). Defendant argues that: (1) the entire Complaint fails due to Government Code section 844.6; (2) the first cause of action for violation of the Bane Act (Civil Code section 52.1) fails to state facts sufficient to constitute a cause of action; (3) the second cause of action for sexual harassment (Civil Code section 51.9) fails to state facts sufficient to constitute a cause of action; (4) the third cause of action for failure to summon medical care fails to state facts sufficient to constitute a cause of action; (5) the fourth cause of action for negligence fails to state facts sufficient to constitute a cause of action; (6) the fifth cause of action for negligent supervision fails to state facts sufficient to constitute a cause of action; (7) the sixth cause of action for negligent hiring and retention fails to state facts sufficient to constitute a cause of action; and (8) the seventh cause of action for negligent failure to warn, train, or educate fails to state facts sufficient to constitute a cause of action.

For the reasons discussed below, the Court **SUSTAINS** Defendant’s demurrer to Plaintiff’s Complaint, in full, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Lauren B. Fazio Decl., ¶¶ 2-4; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that adds *details* or *explanatory facts*, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit District* (2012) 209 Cal.App.4th 1228, 1235-1236, *italics added*.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Complaint

Plaintiff’s Complaint contains paragraphs 1-60 in the first 16 pages and then begins at paragraph 1 again on page 16 and proceeds to continue to paragraph 186 on page 60. For clarity, citations to the Complaint will be to a page and paragraph number. **Plaintiff is admonished to avoid such confusing number scheme in connection with any amended pleading.**

In approximately 2003-2004, Plaintiff was around 17 years old when he found himself under a court ordered confinement at Orin Allen Youth Rehabilitation Facility, a juvenile detention facility. (Complaint, p. 4, ¶¶ 11-12; p. 12, ¶¶ 37-38; p. 17, ¶ 2.) During this time, one of the staff who had supervision and control of Plaintiff was a Caucasian female probation officer, who was approximately 5 feet tall and had a heavy-set build (“Officer Lewis”). (Complaint, p. 17, ¶ 2.) Plaintiff alleges that Officer Lewis used control and isolation to coerce him into sexual conduct that included oral sex and sex, in addition to other sexual activity. (*Id.* p. 17, ¶ 3.) Due to the sexual abuse Plaintiff suffered, he experienced depression, anxiety, insomnia, sexual identity issues, lowered self-esteem, nightmares, stress, embarrassment, shame, and loss of enjoyment of life, among other issues. (*Id.* p. 18, ¶ 8.)

Plaintiff seeks past, present, and future general damages in an amount to be determined at trial, special damages, attorney fees and costs, interest, and as to the individual defendants, seeks exemplary damages. (Complaint, pp. 60-61.)

Discussion

Government Code section 844.6

Defendant's Position

Defendant contends that it is subject to absolute immunity and is not liable for any injuries to Plaintiff pursuant to Government Code, section 844.6, subdivision (a)(2), which provides that “a public entity is not liable for . . . An injury to any prisoner.” (MPA ISO Demurrer, pp. 9-10)

Defendant discusses that in *Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, the court was called upon to determine whether the term “prisoner” as used in Section 844.6, subdivision (a), subsection (2), encompassed a “ward of a juvenile court declared under Welfare & Institutions Code section 602 and under placement by that court.” After reviewing available legislative comments, the court concluded, “that the Legislature intended that the word ‘prisoner’ included (sic) all inmates of any facility in which they were placed by the courts of law.” (*Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, 410). (MPA ISO Demurrer, pp. 9-10.)

Defendant then asserts that in *Patricia J. v Rio Linda Union School District* (1976) 61 Cal.App.3d 278, the court held that, “a foster care agency in which restraints on individual freedoms are exerted would properly be categorized as an institution whose inmates are considered prisoners, as would a juvenile hall.” (*Patricia J. v Rio Linda Union School District* (1976) 61 Cal.App.3d 278, 287). The court acknowledged Welfare and Institutions Code section 851, which provides that a juvenile hall should not be treated as a penal institution, but held “[n]evertheless, if a ward is placed there [juvenile hall], he is a prisoner in the sense that he was in custody as the result of a legal process. Our definition of a prisoner applies equally to wards of the juvenile court as well as to adults.” (*Id.*) (MPA ISO Demurrer, p. 10.)

Defendant argues that Plaintiff “acknowledges that he was in custody, confined, and incarcerated at the Facility, quintessential characteristics of a prisoner. (FAC at ¶ 1 (16:25-27.) Roe was a ward of a juvenile court per Welfare & Institutions Code section 602(a) and qualified as a ‘prisoner’ for purposes of the immunity set forth in Section 844.6(a)(2).” (MPA ISO Demurrer, p. 10.) Defendant goes on to assert that no exceptions exist in this matter and that Civil Code section 52.1 does not void the statutory immunity under Government Code section 844.6. (MPA ISO Demurrer, pp. 10-11.)

Plaintiff's Position

Plaintiff argues that Section 844.6 does not apply because a child in a county juvenile rehabilitation facility is not a “prisoner” and the defense does not clearly appear on the face of the Complaint. (Opposition, p. 9.) Plaintiff asserts that the statutory text and scheme exclude detained children from the definition of “prisoner” because of the state legislature’s focus on not treating juvenile offenders as needing punitive incarceration from crime but rather focus on treatment, guidance, and rehabilitation. (*Ibid.*)

Plaintiff argues that the “County’s half-century-old authorities do not control this pleading,” and asserts that the cases *Jiminez* and *Patricia*, cited by Defendant, predate the state legislature’s modern restructuring of juvenile justice and the 2019 enactment of Assembly Bill 218 that revived childhood sexual assault claims against public entities. (Opposition, p. 10.)

Plaintiff points out that Defendant does not cite one case in which a court extinguished a revised

section 340.1 claim brought by a survivor of childhood sexual assault in a county juvenile detention facility. (Opposition, p. 10.)

Plaintiff then asserts that the defense does not clearly and affirmatively appear on the face of the pleading because “[t]he FAC alleges confinement at a youth rehabilitation facility and probation camp operated for the care and rehabilitation of minors. (FAC ¶¶ 11-12, 17 [p. 19].) Whether that facility, in 2003-2004, constituted a “prison, jail, or penal or correctional facility” within section 844 is at best a factual question that cannot be resolved against Plaintiff on demurrer.” (Opposition, p. 10.)

Plaintiff contends that the County’s construction would nullify AB 218 for the most vulnerable class of survivors. (Opposition, p. 10.) “Under the County’s reading, every child raped while locked in a county facility — children over whom the government exercised total control — would be categorically remediless, while children abused in public schools may recover. Nothing suggests the Legislature intended that perverse result, and this Court should not presume it.” (*Ibid.*)

Finally, Plaintiff argues that even if Plaintiff were a prisoner under Section 844.6, that the third cause of action, failure to summon medical care, falls within the express exception to Section 844.6. (Opposition, p. 11.)

Defendant’s Reply

On reply, Defendant argues that “Orin Allen Youth Rehabilitation Facility, as a secure detention facility holding minors by court order with restricted liberty, constitutes a ‘correctional facility’ under any ordinary meaning of that term, and *Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407 applied section 844.6 to juvenile detainees and has not been legislatively overruled, as the subsequent amendments to section 202 and section 851 addressed facility conditions and purposes rather than the immunity framework of section 844.6.” (Reply, p. 5.) Defendant asserts that whether Orin Allen Youth Rehabilitation Facility is a correctional facility is a question of law “because it turns on the legal character and statutory framework governing the facility rather than on disputed historical facts. The FAC itself alleges that Roe was confined ‘by court order’ at a secure facility operated by County’s probation department. If taking these facts as true, they establish as a matter of law that the facility constitutes a correctional facility within section 844, because court ordered confinement in a probation operated secure facility is the defining characteristic of a correctional setting.” (*Id.* at pp. 5-6.) Defendant asserts that none of the enumerated exceptions apply, and that Plaintiff’s Government Code section 845.6 claim (failure to furnish medical care) is not adequately pled because the allegations do not show there was a need for immediate medical care and even if it did it was not revived by Civil Code section 340.1. (*Id.* at pp. 6-7.)

Analysis of Applicability of Government Code section 844.6 to This Case

First, the Court finds that Government Code section 844.6 applies to this case. There is no question of fact or law about this, Plaintiff affirmatively pleads in the Complaint that he was “a minor in the custody . . . and confined at . . . a juvenile detention facility” when he “was approximately 17 years old . . .” and that this was “court ordered and mandatory. . .” (Complaint, pp. 16-17, ¶¶ 1-2; p. 12, ¶ 38.) He pleads that California Code of Regulations Title 15, section 3401.5 applies and bars any and all sexual conduct between himself and defendant Officer Lewis because the legal concept of “consent” does not apply between an inmate and the departmental staff. (*Id.* at p. 13, ¶ 42.) California Code of Regulations Title 15, section 3401.5, subdivision (a) provides that “For the purposes of this section, staff sexual misconduct means any sexual behavior by a departmental employee, volunteer, agent or

individual working on behalf of the Department of Corrections and Rehabilitation, which involves or is directed toward an incarcerated or supervised person.” Plaintiff further alleges that there was a special relationship here because “the jailer has control over the minor in custody. . .” (*Id.* at p. 19, ¶ 15.) Plaintiff alleges that “minors within the juvenile justice system were habitually sexually abused and assaulted. . .” (*Id.* at p. 13, ¶ 46.) Plaintiff alleges that “To highlight the issue of sexual assault for people in custody the federal court passed the Prison Rape Elimination Act.” (*Id.* at p. 23, ¶ 28.)

In ruling upon demurrers, courts treat as being true “not only the complaint’s material factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) Here, considering Plaintiff’s allegations described above, he was clearly in the custody of a juvenile detention facility for which Section 844.6 covers. The statute itself and caselaw make clear that Section 844.6 applies to juveniles who are in the situation that Plaintiff pleads he was in. The 1963 Legislative Committee Comment provides that “[t]he immunity provided to public entities by this section prevails over all other provisions of the statute. Thus, the public entity is immune from liability for injuries to prisoners (*which includes wards of the juvenile court*). . .” (Gov. Code, § 844.6, 1963 Com. com. [italics added].)

In *Jiminez*, it was alleged that a minor “drowned in the Merced River through the negligence and carelessness of the . . . Defendants State of California and County of Santa Cruz. . .” (*Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, 409.) The surviving family members sued for wrongful death. (*Id.* at p. 408.) It was “conceded that at the time of his drowning Leo was a juvenile under the direction and control of defendant by reason of a juvenile court placement. . .” (*Id.* at p. 409.) The trial court there found the action had no merit as to the County of Santa Cruz and ordered the action dismissed and entered judgment in favor of the County of Santa Cruz. (*Ibid.*) The Court of Appeal affirmed on the basis of Government Code section 844.6, stating that “the term ‘prisoner’ is to be broadly interpreted.” (*Ibid.*) The Court ruled that “the Legislature intended that the word ‘prisoner’ included all inmates of any facility in which they were placed by the courts or law.” (*Id.* at p. 410) Despite the plaintiffs in *Jiminez* arguing that juvenile proceedings are of a civil rather than criminal nature, as Plaintiff in this case similarly argues, the court in *Jiminez* ruled that a juvenile is a prisoner under Section 844.6 when “he is involuntarily restrained and deprived of his liberty by judicial process,” which is exactly what Plaintiff alleges in this case. (*Id.* at pp. 410-411) As stated above, Plaintiff here alleges that he was “a minor in the custody . . . and confined at . . . a juvenile detention facility” when he “was approximately 17 years old . . .” and that this was “court ordered and mandatory. . .” (Complaint, pp. 16-17, ¶¶ 1-2; p. 12, ¶ 38.) Thus, Section 844.6 applies to this case. As stated in *Patricia*, “we conclude that to come within the purview of section 844.6, a prisoner must be a person confined in a correctional facility or institution under the authority of law enforcement authorities or legal process. Our definition of a prisoner applies equally to wards of the juvenile court as well as to adults.” (*Patricia J. v. Rio Linda Union Sch. Dist.* (1976) 61 Cal.App.3d 278, 287.)

Plaintiff’s argument that *Jiminez* and *Patricia* are old cases and that Defendant does not cite to one case in which a court used Section 844.6 in regards to a claim of sexual assault made pursuant to Civil Code section 340.1, is not persuasive as Plaintiff cites no legal authority to oppose or even call into question the continuing legal authority of *Jiminez* and *Patricia*, which are published Court of Appeal opinions that bind this superior court. “Under the doctrine of stare decisis, all tribunals exercising inferior jurisdiction are required to follow decisions of courts exercising superior jurisdiction. Otherwise, the doctrine of stare decisis makes no sense. The decisions of this court are binding upon and must be followed by all the state courts of California. Decisions of every division of the District

Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction. It is not their function to attempt to overrule decisions of a higher court.” (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.)

Plaintiff’s argument that applying Section 844.6 to this case would nullify AB 218 for the most vulnerable class of survivors is also unavailing. Plaintiff cites to nothing in AB 218 or Section 340.1 that addresses Section 844.6 and abrogates it. (See *Towery v. State of California* (2017) 14 Cal.App.5th 226, 234 [“Make no mistake, we recognize the human and social significance of this case; however, we are bound by the law. Civil Code section 52.1 does not address the immunity established by section 844.6. Nothing in Civil Code section 52.1 indicates an intent to abrogate this specific immunity provision. The immunity that it creates therefore applies”].) It is not the function of this Superior Court to overrule decisions of higher courts. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.) Policy arguments, no matter how compelling or persuasive, do not control over binding Court of Appeal authority. (See *ibid.*) The Court will sustain Defendant’s demurrer to the Complaint based on Government Code section 844.6.

Exceptions to Section 844.6

Plaintiff properly asserts that he pleads a claim under Government Code section 845.6 (titled “Failure to furnish prisoner medical care”), which is an enumerated exception to Section 844.6. (Gov. Code, §§ 844.6, subd. (a); 845.6; Opposition, p. 11; Complaint, pp. 29-31, ¶¶ 35-46; pp. 36-40, ¶¶ 68-77.) Defendant argues that Plaintiff has not properly pled this claim because the allegations do not show there was a need for immediate medical care and even if it did it was not revived by Civil Code section 340.1. (MPA ISO Demurrer, p. 12; Reply, pp. 6-7.)

“Liability under section 845.6 is limited to serious and obvious medical conditions requiring immediate care.” (*Watson v. State of California* (1993) 21 Cal.App.4th 836, 841.) Plaintiff pleads that “[t]he sexual assault and abuse inflicted upon PLAINTIFF constituted a serious and obvious medical condition requiring immediate care. Sexual assault creates urgent medical needs, including the risk of physical trauma, unintended pregnancy, and sexually transmitted infections, as well as the acute psychological impact of trauma requiring emergent mental health intervention.” (Complaint, p. 30, ¶ 40.) However, these are broad and conclusory statements that do not provide the Court with any **facts** about what serious and obvious medical condition Plaintiff actually suffered from the alleged sexual abuse. He seemingly could not get pregnant, and it is not clear how a potential STD is obvious.

For example, Paragraph 41 on page 30 states some general lists, but these do not state any actual facts about Plaintiff. Plaintiff alleges that Defendants knew or had reason to know that Plaintiff was in need of immediate medical care by reason of “Their receipt of complaints, disclosures, or observable signs that Plaintiff had been victimized.” (Complaint, p. 30, ¶ 41.) However, there is no allegation that Plaintiff complained to anyone about the sexual assault. Nor are there facts alleged about what the “observable signs” were that he had been victimized. Plaintiff continues to identify how Defendant knew or should have known he needed medical care, “Their awareness of Plaintiff’s physical injuries, psychological distress, or requests for help.” (*Ibid.*) Again, what physical injuries? Who did he request help from? Plaintiff alleges that he “exhibited injuries and presented with behavioral and emotional signs indicating a need for immediate medical care. Despite this knowledge DEFENDANTS, and each of them, failed to summon or provide immediate medical care for Plaintiff.” (*Id.* at p. 39, ¶ 73.) This is

conclusory because it does not state *what injuries* he exhibited or *what behavioral or emotional signs* he displayed that indicated a need for immediate medical care.

“When a complaint complies with the fact-pleading requirement of section 425.10, subdivision (a)(1), [t]he existence of a legal right in an abstract form is never alleged by the plaintiff; but, instead thereof, the facts from which that right arises are set forth, and the right itself is inferred therefrom.” (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415, internal quotations omitted.) Here, Plaintiff has not set forth sufficient facts from which the legal right may be inferred. Further, this is a statutory cause of action based on Government Code section 845.6, which means that Plaintiff should plead the facts with particularity. (*Covenant Care, Inc. v. Super. Ct.* (2004) 32 Cal.4th 771, 790 [California Supreme Court describing the “general rule that statutory causes of action must be pleaded with particularity”].)

The Court finds that Plaintiff has not properly pled facts sufficient to show that Plaintiff suffered a serious and obvious medical condition requiring immediate care under Government Code section 845.6. The Court is not saying that if Plaintiff adds these facts to his allegations, he will state a claim, but the Court cannot determine whether he has stated a claim without facts being pled instead of generic and broad assertions. Additionally, without knowing the serious and obvious medical condition(s) requiring immediate care, the Court cannot properly evaluate or assess whether Section 340.1 would or would not apply. The Court will sustain Defendant’s demurrer to this cause of action based on Plaintiff’s failure to plead sufficient facts to constitute a cause of action based on Government Code section 845.6.

Leave to Amend

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Court will grant Plaintiff leave to amend.

Ruling

Based on the analysis above, the Court **SUSTAINS** Defendant’s demurrer to Plaintiff’s Complaint, in full, with leave to amend. Plaintiff may file and serve an amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

10. 9:00 AM CASE NUMBER: C26-00282
CASE NAME: BREONNA WILLIAMS VS. SHONTELL WILLIAMS
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: WILLIAMS, SHONTELL
TENTATIVE RULING:

Before the Court is a motion by defendants John Stewart Company and Shontell Williams to strike portions of Plaintiff's complaint. For the reasons set forth, the motion is **GRANTED IN PART** and **DENIED IN PART**, as detailed below.

Background

Plaintiff alleges she was a residential tenant at the property located at 2833 Martin Luther King Jr. Avenue in Richmond (the "Property") for approximately two years from November 2023 until

December 11, 2025. (Compl. ¶ 10.) She alleges that defendant John Stewart Company (the "Company") is the landlord and a property manager and that defendant Shontell Williams is a property manager of the Property. (Compl. ¶¶ 2, 3, 11.)

Plaintiff alleges "substantial defective conditions" existed at the Property while she was a tenant for which Defendants "received notices of violations from the City of Richmond Departments of Building Inspection and Health that the unit was illegal, dangerous, and uninhabitable." (Compl. ¶ 13.) She provides additional allegations of the ways in which Defendants allowed the Property not to conform to applicable law for a residential tenant property, which she alleges was done by Defendants "knowingly and negligently." (Compl. ¶¶ 13, 27, 44, 51.)

Plaintiff alleges eight causes of action, including negligence, breach of the implied warranty of habitability, breach of the implied warranty of quiet enjoyment, breach of contract, intentional infliction of emotional distress ("IIED") (4th C/A), breach of contract, breach of the implied covenant of good faith and fair dealing, private nuisance (7th C/A), and violation of the Richmond Municipal Code ("RMC") section 11.103 (8th C/A). In connection with the 4th and 7th C/As for IIED and private nuisance, Plaintiff alleges a claim for punitive damages. (Compl. ¶¶ 30, 49 and Prayer ¶ 5.) As to the claim for violation of the RMC, Plaintiff seeks treble damages. (Compl. ¶ 53 and Prayer ¶ 6.)

Legal Standards Applicable to Motion to Strike Punitive Damages

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. §§ 436(a) and (b).) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (Code Civ. Proc. § 431.10 (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice, and the Court accepts the factual allegations of the complaint as true, but not " 'conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts.' [Citation omitted.]" (Code Civ. Proc. § 437; *Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1163.) (See also *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436(a); *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.)

Punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" is defined as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1) [emphasis added].) "Oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).)

Civil Code section 3294 was amended in 1987 to add the requirement that conduct be "despicable" to support an award of punitive damages based on malice or oppression, unless the complaint alleges an intent to injure the plaintiff. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211; Stats.1987, c. 1498, § 5, p. 5780.) The California Supreme Court explained that adding "despicable" was a "new substantive limitation" on punitive damages. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Addressing the meaning of "despicable," the Court stated that "the adjective 'despicable' is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.'" (4 Oxford English Dict. (2d ed. 1989) p. 529.) As amended to include this word, the statute plainly indicates that absent

an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (*Id.*) (*See also Lackner v. North* (2006) 135 Cal.App.4th 1188, 1209 ["The adjective 'despicable' connotes conduct that is '... so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citations, internal quotations omitted.]"].)

To support claim for punitive damages, "[n]ot only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) As a statutory claim, it must be pled with specificity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) Alleging an intentional tort alone is not enough to support a claim for punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Defendants cite, among other decisions, *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269. The case involved a bad faith claim against an insurance company for bad faith denial of a claim under the plaintiffs' homeowners insurance policy, in which the Court reversed an award of punitive damages after a jury trial based on insufficient financial evidence and improper instructions to the jury on the distinction between conduct sufficient for a bad faith claim and the conduct required to impose punitive damages. (*Id.* at 1285-1286.) With respect to the standards for awarding punitive damages, the Court reiterates the characterization of the conduct required for punitive damages to be imposed described in a number of the decisions cited above. (*Id.* at 1286-1287 [also citing decision characterizing the necessary conduct as " 'having the character of outrage frequently associated with crime.' [Citation omitted.]"].)

When a claim for punitive damages is alleged against a corporate entity, additional allegations are required. "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code § 3294(b).)

Analysis

A. Untimeliness of Motion

A motion to strike any pleading must be filed "within the time allowed to respond to a pleading." (Code Civ. Proc. § 435(b)(1).) Generally, the deadline for service of pleadings is 30 days after service of the summons and complaint. (Code Civ. Proc. § 412.20(a)(3).) When the summons and complaint are served by subservice under Code of Civil Procedure section 415.20, as was the case for both defendants the Company and Shontell Williams, service is not deemed to be complete until 10 days after copies of the summons and complaint are mailed. (Code Civ. Proc. §§ 415.20(a) and (b); Purtell Decl. Exhs. A and B.)

The proofs of service show subservice and mailing of the summons and complaint on the Company on

February 5, 2026 and on Shontell Williams on February 10, 2026. (Purtell Decl. Exhs. A and B.) Responsive pleadings were therefore due from the Company on March 17, 2026 and from Shontell Williams on March 23, 2026 (March 22, 2026 was a Sunday). The defendants filed their motion on April 2, 2026, approximately one to two weeks after the response deadline and within the April 3, 2026 deadline set by Plaintiff's counsel for them to file an answer. (Purtell Decl. ¶¶ 6-7, Exh. C.)

The Court agrees the motion to strike was untimely without considering the conditional deadline extension offered by Plaintiff. Nevertheless, the Court has the discretion to consider an untimely motion to strike. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750; Code Civ. Proc. § 436(a) [Court may "at any time in its discretion" strike portions of a pleading].) Plaintiff has filed a detailed opposition to the motion on the merits and has requested leave to amend if the Court finds the allegations insufficient. The Court finds it appropriate in the interests of justice and judicial efficiency to exercise its discretion to rule on the merits of the motion.

B. Sufficiency of Allegations of the Complaint to State A Claim for Punitive Damages Generally as to Fourth and Seventh Causes of Action

Plaintiff only seeks punitive damages in connection with the fourth and seventh causes of action. Defendants do not argue that punitive damages are not available in an IIED claim, which alleges an intentional tort, or for a private nuisance if sufficient facts meeting the standards of Civil Code section 3294 are alleged. Rather, Defendants contend that Plaintiff's Complaint fails to allege facts that either of the Defendants acted with malice, oppression, or fraud.

In each of paragraphs 27 and 44 on which Plaintiff's IIED and private nuisance claims are based, Plaintiff alleges that Defendants "knowingly and negligently" failed or refused to do a number of things in conformity with applicable law or in compliance with applicable codes, including (1) provide adequate heat, (2) maintain a structurally compliant Property, and (3) provide proper electrical components, plumbing, windows, ventilation, appliances, and ingress and egress. (Compl. ¶¶ 27, 44.) She alleges Defendants "knowingly and negligently" exposed her to "unsanitary odors" and failed to remediate the odors and water infiltration. (Compl. ¶¶ 27, 44.) She also alleges Defendants "knowingly and negligently" illegally hired unlicensed contractors to perform "dangerous and unsafe work." (Compl. ¶¶ 27, 44.) She alleges Defendants "knowingly and negligently exposed Plaintiff to unsafe, illegal, and severe levels of mold" and that Defendants "knowingly and negligently refused to remediate mold" from the Property "despite repeated knowledge that such was adversely affecting Plaintiff's health." (Compl. ¶¶ 27, 44.) The timing of these occurrences is bounded by her allegation regarding the period of her tenancy from November 2023 to December 2025. (Compl. ¶ 10.) In addition, in paragraph 13, incorporated by reference into the fourth and seventh causes of action (Compl. ¶¶ 26, 42.) Plaintiff alleges that Defendants received notices of violations of the Richmond Building and Health Code during her tenancy. She alleges the unit was cited as being "illegal, dangerous, and uninhabitable," and she alleges illegal work was performed without permits. (Compl. ¶ 13.)

Plaintiff's allegations do not merely plead the general language of the statute to support her claim for punitive damages. She alleges a series of facts regarding defects in her unit that violate the habitability requirements, that Defendants allowed the defects and failed to remediate them "knowingly," and that Defendants received notices from Richmond citing the Property where she was residing as a tenant as illegal and uninhabitable. (Compl. ¶ 13.) She alleges Defendants knew of serious mold levels in the Property that were causing her adverse health effects, knew of her adverse health issues caused by the mold, and failed or refused to remediate the mold issues. (Compl. ¶¶ 27,

44.) These are specific facts, not just factual conclusions. Accepting as true the long laundry list of defects in the Property Defendants allegedly "knowingly" allowed to exist and failed to remediate property, despite being cited for uninhabitability by the Richmond Departments of Building Inspection and Health, the facts are sufficient to allege the "despicable" conduct in willful and conscious disregard of Plaintiff's rights and safety to state a claim for punitive damages, at least as to defendant Shontell Williams. (Civ. Code §§ 3294(c)(1) and (2).)

C. Lack of Allegations to Support Punitive Damages Against the Company Based on Acts or Omissions of Its Employees under Civil Code Section 3294(b)

Plaintiff does not allege that Shontell Williams was an employee of the Company, only that she managed the Property. (Compl. ¶¶ 3 and 11.) Plaintiff does not allege any individual identified employee of the Company had knowledge of the alleged defects or lack of maintenance or correction of defects at the Property. Even if Shontell Williams by implication is employed by the Company, Plaintiff does not allege any facts stating that any officer, director, or managing agent of the Company either (1) had advance knowledge of "the unfitness of the employee" who committed the alleged wrongful acts or failure to act in addressing Property defects or maintenance, and "employed him or her with a conscious disregard of the rights or safety of others," or (2) any officer, director, or managing agent of the Company authorized or ratified the wrongful conduct of the employee(s) of the Company with respect to the wrongful acts and omissions generally alleged above in paragraphs 13, 27, and 44. (*Id.*)

In her opposition, Plaintiff does not address Civil Code section 3294(b) at all. She does not argue that her Complaint includes the allegations required to state a claim for punitive damages against the Company as a corporation pursuant to Civil Code section 3294. The Court's review of the Complaint indicates the Complaint does not include the factual allegations necessary to state a claim for punitive damages against the Company under Civil Code section 3294, though Plaintiff may be able to allege such facts if given leave to amend.

D. Sufficiency of Allegations to State A Claim for Treble Damages under RMC Section 11.103

Defendants' motion asks the Court to strike Plaintiff's claim for treble damages under RMC section 11.103 in the eighth cause of action, but Defendants do not address the ordinance in their memorandum or provide authority supporting striking the claim. Defendants generally lump the claim for treble damages under the Richmond ordinance into the claim for punitive damages in the introductory portions of the memorandum. Defendants do not cite or quote any provisions of the ordinance or other authority regarding the standards for imposing treble damages under RMC section 11.103. They cite nothing in the RMC or other authority that would allow the Court to conclude that the standards for imposing treble damages under RMC section 11.103 are the same as the standards for punitive damages under the Civil Code. Defendants' motion to strike the provisions of the Complaint seeking treble damages under RMC section 11.103 is therefore unsupported and **DENIED** on that ground.

Conclusion and Ruling

For the reasons stated above, the Court **GRANTS** the motion to strike by Defendant John Stewart Company as to the following: (a) the prayer for punitive damages in paragraph 30 ("Plaintiff pray for punitive damages pursuant to *California Code of Civil Procedure [sic] § 3294*"), (b) the prayer for punitive damages in paragraph 49 ("Plaintiff further pray for punitive damages pursuant to *California*

Code of Civil Procedure [sic] § 3294 and *Hassoldt v. Patrick Media Group, Inc.* (2000) 84 Cal.App.4th 153"), and (c) paragraph 5 of the Prayer of the Complaint ("For the Causes of Action for Intentional Infliction of Emotional Distress and Private Nuisance, punitive damages pursuant to *California Code of Civil Procedure [sic] § 3294*"). Those provisions of the Complaint shall be deemed properly asserted only against defendant Shontell Williams. The Court will **GRANT** Plaintiff **LEAVE TO AMEND** to attempt to allege facts to state a claim for punitive damages against the Company under Civil Code section 3294(b). The Court **DENIES** the motion to strike by defendant Shontell Williams as to those portions of the Complaint.

The Court **DENIES** the motion to strike by both defendants John Stewart Company and Shontell Williams directed to paragraph 53 and paragraph 6 of the Prayer of the Complaint.

11. 9:00 AM CASE NUMBER: C26-00564

**CASE NAME: CATERPILLAR FINANCIAL SERVICES CORPORATION, VS. CHRIS CHRYSSIKOS
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION AFTER HEARING RE: CHRIS ROY
CHRYSSIKOS**

FILED BY: CATERPILLAR FINANCIAL SERVICES CORPORATION,

TENTATIVE RULING:

The unopposed Application for Writ of Possession is **GRANTED**. Moving party to appear in connection with review and entry of order(s).

12. 9:00 AM CASE NUMBER: L25-02197

**CASE NAME: ONEMAIN FINANCIAL, LLC ONEMAIN FINANCIAL GROUP, LLC VS. HEISELL CENTENO
MURILLO**

HEARING IN RE: MOTION TO PAY IN INSTALLMENTS

FILED BY:

TENTATIVE RULING:

Defendant and judgment debtor Heisell Centeno Murillo ("Judgment Debtor") filed a motion to pay judgment in installments on May 4, 2026 (the "Motion to Pay Installments"). The Motion to Pay Installments was set for hearing on August 3, 2026. The motion is opposed.

Background

A default judgment was entered against Judgment Debtor on October 16, 2025, awarding \$10,981.92 (the "Judgment Amount") to plaintiff and judgment creditor OneMain Financial Group, LLC ("Judgment Creditor"). See Judgment filed October 16, 2025. On May 4, 2026, Judgment Debtor filed the Motion to Pay Installments, seeking to pay the Judgment Amount in \$250 monthly installments, payable on the 10th of each month. See Declaration as part of Motion to Pay Installments ("Murillo Declaration"), ¶13. No proof of service is attached to the Motion to Pay Installments or filed separately.

Judgment Creditor filed an opposition on July 21, 2026 (the "Opposition"). Judgment Creditor acknowledges receiving a copy of the Motion to Pay Installments on May 20, 2026. Opposition, p. 1.

Analysis

In a limited civil case where there is a money judgment, the judgment shall be paid immediately unless otherwise prescribed by the court. Code Civ. Proc. § 582.5. Upon motion by a party, the court may provide for payment through installments where there is good cause. *Id.* The moving party does not need to have appeared before the court prior to the entry of the judgment in order to seek an order for payment by installments. *Id.*

Here, the Murillo Declaration details Judgment Debtor's financial information. Based on this, Judgment Debtor has a monthly take-home pay of \$6,887.32. Murillo Declaration, ¶15 *et seq.* This leaves a monthly surplus of \$577.32 after expenses. See *id.* at ¶¶15-7. Judgment Debtor also states that he/she is financially supporting his/her mother who recently underwent surgery. *Id.* at ¶18 *et seq.*

In the Opposition, Judgment Creditor highlights several discrepancies in the Murillo Declaration. Most notably, the calculation of Judgment Debtor's take-home pay is erroneous. A total payroll deduction of \$4,807.12 is reported, however the actual sum of the individual payroll expenses is \$3,682.28. Opposition, p. 3; see Murillo Declaration, ¶15. This indicates a monthly take-home pay of \$8,012.16 as opposed to the \$6,887.32 set forth in the Murillo Declaration. *Id.* After expenses, this yields a monthly surplus of \$1,702.16. The Court's calculations match those of the Judgment Creditor in the Opposition. See Opposition, p. 3.

In light of the above, the Court, in its discretion and for good cause shown, GRANTS IN PART the Motion to Pay Installments. Judgment Debtor will be permitted to pay the Judgment Amount in monthly installments. However, considering the larger monthly surplus, the installments shall be in the amount of \$415, payable on the 10th of each month. The Court finds this amount just and reasonable given Judgment Debtor's financial circumstances. The first payment shall be due August 10, 2026.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Pay Installments is GRANTED IN PART. Judgment debtor shall pay the Judgment Amount in monthly installments of \$415, payable on the 10th of each month. The first payment shall be due August 10, 2026.
2. The Court will issue the order after hearing.

13. 9:00 AM CASE NUMBER: MSC20-00271
CASE NAME: MENASCO VS KILARR
***HEARING ON MOTION IN RE: ATTORNEYS FEES MOTION FILED TO/FOR**
FILED BY:
TENTATIVE RULING:

Parties to Appear.

14. 9:00 AM CASE NUMBER: N26-0447
CASE NAME: PETITION OF:QUALITY LOAN SERVICE CORP.
HEARING ON PETITION IN RE: PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: QUALITY LOAN SERVICE CORP.

TENTATIVE RULING:

The matter is on calendar for determination of Petitioner Quality Loan Service Corp.'s ("Petitioner") Petition and Declaration regarding Unresolved Claims and Deposit of Undistributed Surplus Proceeds of Trustee's Sale filed on March 10, 2026 (the "Petition"). The matter was set for hearing on July 30, 2026.

Background

As set forth in the Petition, the sum of \$240,079.27 remained undistributed following a trustee's sale held on or about June 2, 2025. That amount was ordered deposited with the Clerk of the Court (the "Deposited Funds"). See Order entered April 23, 2026 (the "Order for Deposit of Surplus Funds").

Thereafter, the Court set and noticed this hearing on the Petition. See Notice of Hearing dated June 3, 2026.

Analysis

No further filings have been made by any party or third party. No written claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

Prior to the deposit, no written claims had been received by the trustee as to the Deposited Funds. See Petition, ¶9.

Notice was duly given pursuant to Civil Code section 2924j(a)-(c).

The Court finds that all known potential claimants have been given notice at their last known addresses and other potential addresses identified by Petitioner.

No party entitled to the funds has sought to claim them.

Therefore, the funds are to remain on deposit with the Court for a three-year period prior to escheatment. See Gov. Code § 68084.1(a) ("Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court . . ."). Any interested party may file a claim with the Court's executive officer for all or a portion of the Deposited Funds prior to escheatment. Gov. Code § 68084.1(c); Civ. Proc. §§ 1300 *et seq.*

The Court's executive officer shall provide notice pursuant to Government Code section 68084.1(b) prior to escheatment.

Disposition

The Court finds and rules as follows:

1. The Deposited Funds are to remain on deposit with the Court pursuant to Government Code section 68084.1(a) *et seq.*
2. The Court to prepare the order after hearing.

15. 9:01 AM CASE NUMBER: C25-00575
CASE NAME: JANE DOE N.M. VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS OF RECORDS**
FILED BY: DOE N.M., JANE
TENTATIVE RULING:

Plaintiff Jane Doe N.M. ("Plaintiff") filed a motion to compel further responses to request for production of documents on March 2, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks further responses to Request for Production of Documents, No. 41 (the "RPD"). The Motion to Compel was set for hearing August 3, 2026. The motion is opposed.

Background

Plaintiff served the RPD on December 10, 2025. See Opposition to Motion to Compel filed July 21, 2026 (the "Opposition"), p. 2. Defendant Elements Massage ("Defendant") responded with objections on January 12, 2026. *Id.* The parties describe meet and confer efforts in February 2026, which were unsuccessful. See Opposition p. 2; Motion to Compel, p. 2. Plaintiff subsequently filed the Motion to Compel. The Proof of Service filed March 2, 2026 reflects service on Defendant's counsel.

A case management conference ("CMC") was held on June 11, 2026. In its CMC Order, the Court directed the parties to further meet and confer regarding the discovery dispute. See CMC Order filed June 11, 2026, ¶1.

Following the CMC, the parties have continued to meet and confer. See Opposition, p. 3; Reply to Opposition filed July 24, 2026 (the "Reply"), pp. 1-2. Although no agreement has been finalized, both parties have indicated substantial progress toward a resolution, which includes a protective order and more limited scope of document production. *Id.*

Defendant filed the Opposition on July 21, 2026, and Plaintiff filed the Reply on July 24, 2026.

Analysis

In light of the parties' substantial progress toward a resolution, the Court, in its discretion, hereby continues the matter to **September 14, 2026, 9:00 am** in **Department 34**. The parties are ordered to engage in further meet and confer efforts to try to reach a final resolution to the discovery dispute.

Disposition

The Court hereby finds and orders as follows:

1. The hearing is **CONTINUED** to **September 14, 2026, 9:00 am** in **Department 34**.
2. The parties are ordered to continue to meet and confer regarding a final resolution to the discovery dispute. If resolved, the parties should advise Department 34 as soon as possible and, in any event, no less than a week in advance of the continued hearing date.

16. 9:01 AM CASE NUMBER: C25-01305
CASE NAME:INDERJEET KAUR VS. VOLKSWAGEN GROUP OF AMERICA, INC.,
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1
FILED BY: KAUR,INDERJEET
TENTATIVE RULING:

Plaintiff Inderjeet Kaur ("Plaintiff") filed a Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One, February 25, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing initially on August 3, 2026. The motion is opposed.

Disposition

In the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the Court, *sua sponte*, orders as follows:

1. The Motion to Compel Further Responses is **CONTINUED** to **September 24, 2026, 9:00 am**, in **Department 20 (Judge Melissa O'Connell)**.
2. **Further Court Ordered Meet and Confer.** The parties are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue **within thirty (30) days** of the date of this order. **Such further meet and shall be done through direct talks (in person or via video conference) and address each disputed discovery item by time.**
3. **Compliance Statement.** For the parties' consideration, among other things, in connection with the further meet and confer, the Court notes that it is concerned about the responding party's use of the phrase "will allow this request" in its responses. Such phraseology does not appear to be code compliant. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469. A compliance statement must indicate that the party "will comply" with the particular demand and make the other statements required by Code of Civil Procedure section 2031.220. See Code Civ. Proc. § 2031.220.
4. **Further Joint Filing.** If not resolved through such further talks, the parties are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **September 10, 2026**, the parties shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing ONLY the most recent and operative response at issue if a supplemental or amended response has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the

propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and responses in Column Nos. 1 and 2).**

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Discovery Motions.
 - e. **Courtesy Hard Copy for Department.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 20 not less than one week in advance of the hearing date on the Discovery Motions.
5. The Court shall issue the order after hearing.
6. **NOTICE REGARDING COMPLIANCE WITH ORDERS:** All parties and their counsel, if any, are hereby admonished that a failure to comply with the current orders, including, but not limited to, the orders made herein, and/or conduct which frustrates or obstructs such orders may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys' fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5.

17. 9:01 AM CASE NUMBER: C25-02870
CASE NAME: JANE DOE M.M. VS. MT. DIABLO UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING COMPLIANCE WITH PLTFS DEPO**
SUBPOENA FOR PROD OF BUSINESS RECORDS
FILED BY: JANE DOE M.M.
TENTATIVE RULING:

Plaintiff Jane Doe M.M. ("Plaintiff") filed a motion to compel compliance with deposition subpoena for production of business records on February 27, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks an order compelling non-party Clayton Police Department/The City of Clayton (the "City") to produce business records subject to subpoena. The Motion to Compel was set for hearing on August 3, 2026. The motion is opposed.

Background

Plaintiff issued a subpoena to The City on December 17, 2025 seeking the following records:

DOCUMENTS REQUESTED

1. Any and all unredacted DOCUMENTS regarding a criminal investigation of Andrew Bruce Cottrell (DOB: 12/31/1969).
2. Any and all unredacted DOCUMENTS regarding child sexual abuse and/or child abuse and/or molestation and/or sexual harassment by Andrew Bruce Cottrell.
3. Any and all unredacted DOCUMENTS regarding a criminal investigation of Andrew Bruce Cottrell regarding child abuse and/or child sexual abuse and/or molestation and/or sexual harassment.
4. Any and all unredacted DOCUMENTS regarding an investigation of child abuse, and/or child sexual abuse, and/or molestation, and/or sexual harassment toward M [REDACTED] G [REDACTED] M [REDACTED] (DOB: [REDACTED] 1998).

(collectively, the “Document Requests”). See Memorandum of Points and Authorities filed as part of Motion to Compel (“MPA”), p. 1; **Exhibit A** of the Declaration of Simona Danesh filed as part of Motion to Compel (“Danesh Decl.”) and Attachment 3 thereto, p. 2.

The City served written objections on December 31, 2025. MPA, p. 1.

Plaintiff describes meet and confer efforts on or about February 11, 2026, which were substantially unsuccessful in resolving the discovery dispute. Motion to Compel, p. 2.

Plaintiff subsequently filed the Motion to Compel. The Proof of Service filed February 27, 2026 reflects service of the Motion to Compel and related documents on The City’s counsel.

The City filed an opposition on July 21, 2026 (the “Opposition”).

Plaintiff filed a reply on July 27, 2026 (the “Reply”).

Analysis

As a preliminary matter, the City contends in its Opposition that no separate statement was filed pursuant to California Rules of Court, rule 3.1345(a)(5), (c). Opposition, p. 3. As Plaintiff points out in the Reply, a separate statement was filed on February 27, 2026. See Reply, p. 1; Separate Statement ISO Motion to Compel filed February 27, 2026. The Proof of Service filed February 27, 2026 reflects service on the City.

The Court turns to the merits.

If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production. Code Civ. Proc. § 2025.480(a).

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the “legitimate and important countervailing interests disclosure serves.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (“*Williams*”).

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams, supra*, 3 Cal.5th at 552. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection

may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

Penal Code section 11167.5 restricts the disclosure of reports made by mandated reporters to only enumerated persons and agencies. See Pen. Code § 11167.5(a), (b).

Here, the City contends that the Document Requests violate the privacy rights of third parties, violate Penal Code section 11167.5, and are overly broad. See Danesh Decl., p. 5 *et seq* and **Exhibit B** thereto (including Objections of The City to Subpoena); Opposition, p. 5. The City further objects based on Welfare and Institutions Code section 827. *Id.*; see also Reply, p. 1. It appears that objection was resolved through meet and confer efforts, as it is absent from the Opposition. *Id.*

The Court finds that the third-party privacy concerns do not completely outweigh Plaintiff's important countervailing interests with respect to discovery regarding the documents and matters at issue. As to Penal Code section 11167.5 and the other statutory limitations on disclosure of protected material/files, they do not completely bar the discovery sought, subject to proper redaction of any information covered by the statutes.

Still, the information put before the Court fails to establish good cause for production of records **to the extent specified** in the Document Requests. The court notes that the Document Requests seek an extraordinarily broad scope of records. Furthermore, the requested documents implicate third party privacy rights of an extremely sensitive nature.

While the Court is not inclined to grant the Motion to Compel in its entirety, the Court does conclude, in weighing the competing interests in light of the totality of the circumstances and applicable statutory requirements, that it is just and appropriate to limit the scope of the Document Requests as discussed below.

Document Requests Nos. 1, 2, and 3

The City shall produce records responsive to Document Requests Nos. 1, 2, and 3 ONLY to the following extent (a) any and all reports, summaries or investigative notes, including, but not limited to police or other investigative reports ("Reports") relating to the topics set forth in the Document Requests. The Reports to be produced shall not include any Reports authored by counsel for the City that constitute work product or attorney-client communications. **The names and personal information of any mandated reporters or third-party victims that are included in such Reports are to be redacted.**

If the requesting party believes it necessary to obtain any further documents, including any primary evidence referred to in the Reports such as medical records or photographs, the parties are ordered to meet and confer after production and review of the Reports to discuss the production of further particularly identifiable documents. If meet and confer efforts are unsuccessful, the Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling.

The Motion to Compel is **GRANTED IN PART** as to these requests.

Document Request No. 4

The City shall produce records responsive to this request to the extent such records exist. However, the names and personal information of any mandated reporters or third-party victims that are included in such documents are to be REDACTED. The Motion to Compel is **GRANTED** as to this request.

Protective Order

Any and all documents produced pursuant to this order shall be subject to a protective order as agreed upon by both parties and approved by the Court. The parties are ordered to meet and confer regarding suitable terms for a protective order within thirty (30) days of notice of entry of this order.

Sanctions

The City's Opposition makes arguments against the imposition of sanctions, however, as noted in Plaintiff's Reply, the issue of sanctions has not been raised. See Opposition, p. 6; Reply, p. 5.

In any event, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** as specified above.
2. The parties are ordered to meet and confer regarding a protective order for any and all documents produced within **thirty (30) days** of notice of entry of this order.
3. The Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling.
4. Any and all sanction requests are denied.
5. Moving party to prepare the order after hearing.

Law & Motion
Add On

18. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
ORDER DESIGNATING CASE COMPLEX UNDER CRC 3.400
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

Defendant City of Antioch (the “City”) filed a Motion for Order Designating Case Complex on February 20, 2026 (the “Complex Case Designation Motion”). The Court, on its own motion, reset the Complex Case Designation Motion for hearing on July 8, 2026 in the Court's Complex Litigation Department, Department 16 before Judge Reyes. See Local Rule 3.16(6). The matter was set back over before Department 34, to be heard on August 3, 2026.

Background

The City seeks a determination that the matter is a “complex case” within the meaning of Rule 3.400 of the California Rules of Court (CRC) and requires exceptional judicial management under the rules governing case management in matter designated as complex.

The request is opposed.

Analysis

There are a number of factors that courts must consider in determining whether a case should be deemed a “complex case” or not. Those factors include whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

See CRC 3.400(b).

The Court has considered the foregoing factors in light of the Court’s docket herein, the pleadings and the arguments by all parties regarding the nature of the case and likely scope of it. Among other things, the Court has considered the likely scope of discovery, including third party discovery.

The Opposition contends that the fundamental scope is limited—One plaintiff; one defendant; and a finite dispute over payment and design changes on a construction project, albeit a sizable project in terms of the monies involved.

While the Court understands the City’s concerns for the likelihood that discovery disputes could balloon and that there will likely be a large volume of documents to manage, the Court does not conclude that those concerns justify or require a complex case designation at this stage of the proceedings. There may be other remedies, including a discovery referee, more appropriate to tackling such issues.

It appears to the Court that this matter involves relatively straightforward and not excessively numerous claims arising from a single project between a limited number of parties. It does not present novel legal issues, an unmanageable number of parties or witnesses, or the need for extraordinary judicial supervision.

Moreover, the Court can, and often does, make case specific orders in regular case management proceedings to facilitate coordination in larger cases, even if not strictly deemed complex and managed under the rules governing complex case management.

Disposition

The Court finds and orders as follows:

1. The Complex Case Designation Motion is DENIED.
2. The moving party to prepare the order after hearing.